

CHAPTER 44.

An Act to amend the British Nationality and Status of Aliens Acts, 1914 and 1918, as respects the acquisition of British nationality by persons born out of His Majesty's Dominions.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Section one of the principal Act (which contains the definition of a natural-born British subject) shall be amended as follows:—

Amendment
of definition
of natural-
born British
subject.

(1) The following paragraph shall be substituted for paragraph (b) of subsection (1):—

“(b) Any person born out of His Majesty's dominions whose father was, at the time of that person's birth, a British subject, and who fulfils any of the following conditions, that is to say, if either—

“(i) his father was born within His Majesty's allegiance; or

“(ii) his father was a person to whom a certificate of naturalization had been granted; or

“(iii) his father had become a British subject by reason of any annexation of territory; or

“(iv) his father was at the time of that person's birth in the service of the Crown; or

“(v) his birth was registered at a British consulate within one year or in special circumstances, with the consent of the Secretary of State, two years after its occurrence, or, in the case of a person born on or after the first day of January, nineteen hundred and fifteen, who would have been a British subject if born before that date, within twelve months after the first day of August, nineteen hundred and twenty-two; and”

(2) The following shall be inserted at the end of subsection (1):

“Provided also that any person whose British nationality is conditional upon registration at a British consulate shall cease to be a British subject unless within one year after he attains the age of twenty-one, or within such extended period as may be authorised in special cases by regulations made under this Act—

“(i) he asserts his British nationality by a declaration of retention of British nationality, registered in such manner as may be prescribed by regulations made under this Act; and

“(ii) if he is a subject or citizen of a foreign country under the law of which he can, at the time of asserting his British nationality, divest himself of the nationality of that foreign country by making a declaration of alienage or otherwise, he divests himself of such nationality accordingly.”

Consequen-
tial amend-
ment.

2. At the end of subsection (1) of section twenty-seven of the principal Act, the following words shall be inserted:—

“The expression ‘British Consulate’ means the office of any British consular officer where a register of births is kept, and includes, in the case of any territory where there is no British Consulate and there is a British resident or other representative of His Majesty, the office of such resident or representative.”

Interpreta-
tion, short
title, and
printing.

4 & 5 Geo. 5.

c. 17.

8 & 9 Geo. 5.

c. 38.

3.—(1) In this Act the expression “the principal Act” means the British Nationality and Status of Aliens Act, 1914, as amended by the British Nationality and Status of Aliens Act, 1918.

(2) This Act may be cited as the British Nationality and Status of Aliens Act, 1922, and the principal Act, the British Nationality and Status of Aliens Act, 1918, and this Act may be cited together as the British Nationality and Status of Aliens Acts, 1914 to 1922.

(3) Every enactment and word which is directed by this Act, to be substituted for or added to any portion of

the principal Act, shall form part of the principal Act in the place assigned to it by this Act; and the principal Act, and all Acts, including this Act, which refer thereto shall, after the commencement of this Act, be construed as if the said enactment or word had been enacted in the principal Act, in the place so assigned, and where it is substituted for another enactment or word, had been enacted in lieu of that enactment or word.

A copy of the principal Act, with the amendments, whether by way of substitution, addition or omission, required by this Act, shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print, in accordance with the copy so certified, all copies of the principal Act, which are printed after the commencement of this Act.

(4) A reference in any enactment (whether passed before or after the passing of this Act), or in any document to the British Nationality and Status of Aliens Act, 1914, shall, unless the context otherwise requires, be construed to refer to that Act as amended by any enactment for the time being in force.

CHAPTER 45.

An Act to provide for raising further Money for the purpose of the Telegraph Acts, 1863 to 1921. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Treasury may, with a view to the development of the telephonic system in Great Britain and Northern Ireland, without prejudice to the exercise of any powers previously given for the like purpose, issue out of the Consolidated Fund, or the growing produce thereof, such sums not exceeding in the whole the sum of

Grant for
purposes of
Telegraph
Acts.